

23TRCV02570 23TRCV02570

County: los-angeles
Division: Civil Law and Motion
Department: 5
Hearing date: 2026-07-29
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Case Number: 23TRCV02570 Hearing Date: July 29, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department
1

kevin symons

;

Plaintiff,

vs.

general motors llc

;

Defendant.

Case
No.:

23TRCV02570

Hearing
Date:

July
27, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF KEVIN SYMONS' MOTION FOR ATTORNEYS'
FEES, COSTS, AND EXPENSES PURSUANT TO CIVIL CODE § 1794(D)

MOVING PARTY: Plaintiff, Kevin Symons

RESPONDING

PARTY: Defendant, General Motors LLC

(1)

Plaintiff

Kevin Symons' Motion for Attorneys' Fees, Costs, and Expenses Pursuant to Civil
Code § 1794(d) is GRANTED in the reduced amount of \$30,169.50 pursuant to Civil
Code section 1794, subdivision (d).

The Court considers the moving
papers filed on June 15, 2026, the opposition brief filed on July 16, 2026, and
the reply brief filed on July 21, 2026.

BACKGROUND

Factual Background

On August 9, 2023, plaintiff
Kevin Symons ("Plaintiff") filed a Complaint against defendant General Motors ("Defendant")
and DOES 1 through 20. On November 20,
2023, Plaintiff submitted a First Amended Complaint ("FAC"). On March 22, 2024, Plaintiff filed a Second
Amended Complaint ("SAC") that included the following causes of action: (1)
Fraud – Concealment; (2) Business and Professions Code § 17200; (3)

Song-Beverly Consumer Warranty Act – Breach of Express Warranty; (4)
Song-Beverly Consumer Warranty Act – Breach of Implied Warranty; and (5)
Song-Beverly Consumer Warranty Act – Civil Code § 1793.2(b). On August 20, 2024, the Court sustained Defendant's demurrer to the first and second causes of action but granted Plaintiff leave to amend. However, Plaintiff did not file a Third Amended Complaint.

On March 3, 2026, the parties executed a Code of Civil Procedure section 998 Offer of Compromise. Plaintiff accepted Defendant's offer on March 3, 2026, with Defendant agreeing to pay the sum of \$9,000.00, in addition to Plaintiff's "attorney's fees, expenses, and costs that have been reasonably incurred pursuant to California Civil code § 1794(d)[.]" (Declaration of Guy Mizrahi ("Mizrahi Decl."), ¶ 8, Exh. D.) Furthermore, Defendant acknowledged Plaintiff as the prevailing party for the purposes of this motion. (Mizrahi Decl., ¶ 8, Exh. D.)

On March 17, 2026, Plaintiff filed a Notice of Settlement of Entire Case.

LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)

Section 1794 provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Thus, the statute includes a "reasonable attorney's fees" standard. The attorney bears the burden of proof as to the

“reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (Ibid.)

A plaintiff’s verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass’n (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford v. Bd. of Trustees of California State Univ. (2005) 132 Cal. App. 4th 359, 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) The factors that courts look at to determine if a multiplier is reasonable are: “(1) the novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award” and (4) the success achieved. (Serrano v. Priest (1977) 20 Cal.3d 25, 49 (Serrano).)

No specific findings reflecting the court’s calculations are required. The record only needs to show that the attorney’s fees were awarded according to the “lodestar” or “touchstone” approach. The court’s focus in

evaluating the facts should be to provide a fee award reasonably designed to completely compensate attorneys for the services provided. The starting point for this determination is the attorney's time records. (Horsford v. Board of Trustees of Calif. State Univ. (2005) 132 Cal.App.4th 359, 395-397 [verified time records entitled to credence absent clear indication they are erroneous].) However, California case law permits fee awards in the absence of detailed time sheets. (Sommers v. Erb (1992) 2 Cal.App.4th 1644, 1651; Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1810; Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 103.) An experienced trial judge is in a position to assess the value of the professional services rendered in his or her court. (Serrano, supra, 20 Cal.3d 25 at p. 49.)

DISCUSSION

It is undisputed that Plaintiff is the prevailing party for the purpose of this motion and is therefore entitled to attorneys' fees, costs, and expenses pursuant to Civil Code section 1794, subdivision (d). (Motion, pp. 3:14-5:7.) Plaintiff is requesting a total award of \$35,986.55, which includes: (1) \$32,475.00 in attorneys' fees; (2) \$2,012.50 in anticipated attorneys' fees for reviewing the opposition brief, preparing the reply brief, and presenting oral arguments at the hearing; and (3) \$1,499.05 in costs and expenses. (Motion, pp. 1:24-26, 7:15-19; Mizrahi Decl., Exhs. B-C.) In response, Defendant asserts that the Court should reduce the requested amount to no more than \$12,852.50 in fees and \$1,096.55 in costs. (Opp., p. 1:17-18.) However, upon reviewing the reasonableness of the requested fees, the Court has determined that a more appropriate award is \$30,169.50.

Reasonableness of the Hourly Rates

Plaintiff requests the hourly rates detailed in the following table. (Mizrahi Decl., ¶¶ 1, 10-15, Exh. B.)

Name

Position

Years of Experience

2023 Hourly Rate

2024 Hourly Rate

2025 Hourly Rate

2026 Hourly Rate

Guy Mizrahi (GM)

Partner

> 23

\$575.00

\$575.00

\$575.00

\$575.00

Priscilla Le (PL)

Associate Attorney

> 3

\$375.00

\$375.00

\$375.00

\$375.00

Nicholas Yakoobian

(NY)

Associate Attorney

> 3

N/A

N/A

\$375.00

\$375.00

To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community, as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.) In the present case, Guy Mizrahi’s declaration presents a detailed account of the qualifications and experience of three attorneys. (Mizrahi Decl., ¶¶ 1, 10-15.) With reference to this declaration and the Court’s own familiarity with the billing rates of Los Angeles-area counsel in similar lemon law cases, the Court finds that the rates are reasonable due to their experience and qualifications.

Reasonableness of the Hours Incurred

Fraud

Defendant argues that the Court should apportion and decline to award \$5,430.00 in fees related to Plaintiff’s fraud causes of action after the Court repeatedly sustained Defendant’s demurrer to these claims. (Opp., pp. 1:26-2:5, 24-27, 3:26-4:10.)

“When a cause of action for which attorney fees are provided by statute is joined with other causes of action for which attorney fees are not permitted, the prevailing party may recover only on the statutory cause of action.” (Akins v. Enterprise Rent-A-Car Co. of San Francisco (2000) 79 Cal.App.4th 1127, 1133.) “Such fees need not be apportioned when

incurred for representation on an issue common to both causes of action in which fees are proper and those in which they are not. [Citation.] Apportionment is not required when the claims for relief are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units." (Bell v. Vista Unified School District (2000) 82 Cal.App.4th 672, 687.)

According to Defendant,

Plaintiff's counsel billed a total of \$5,430.00 from August 18, 2023, to August 27, 2024, related to their fraud causes of action. (Opp., pp. 4:11-5:15; Mizrahi Decl., Exh. B.) This amount includes the following entries:

(1) \$57.50 for 0.1 hours spent by Mizrahi on reviewing Defendant's meet and confer letter regarding Plaintiff's fraud claims on August 18, 2023; (2) \$690.00 for 1.2 hours spent by Mizrahi on preparing opposition briefs to Defendant's demurrer and motion to strike on October 18, 2023; (3) \$1,050.00 for 2.8 hours spent by Le on preparing for and attending the hearing on Defendant's demurrer and motion to strike on October 30 and 31, 2023; (4) \$345.00 for 0.6 hours spent by Mizrahi on preparing the FAC on November 20, 2023; (5) \$115.00 for 0.2 hours spent by Mizrahi on a telephonic conference with Defendant's counsel regarding the FAC, which reasserted the fraud claims, on December 8, 2023; (6) \$765.00 for 1.4 hours spent by Mizrahi on preparing opposition briefs to Defendant's demurrer and motion to strike and reviewing Defendant's reply brief on February 22 and 29, 2024; (7) \$487.50 for 1.3 hour spent by Le on preparing for and attending the hearing on the demurrer, motion to strike, and case management conference on March 6, 2024; (8) \$517.50 for 0.9 hours spent by Mizrahi on preparing the SAC, which again reasserted the fraud claims, on March 6, 2024; (9) \$37.50 for 0.1 hours spent by Le on receiving and reviewing Defendant's Notice of Ruling regarding the demurrer and motion to strike hearing on March 20, 2024; (10) \$37.50 for 0.1 hours spent by Le on receiving and reviewing Defendant's demurrer and motion to strike to the SAC on April 19, 2024; (11) \$862.50 for 2.3 hours spent by Le on preparing opposition briefs to Defendant's demurrer and motion to strike, and reviewing Defendant's reply brief on August 7, 8, and 13, 2024; (12) \$525.00 for 1.4 hours spent by Le on preparing for and attending the hearing on the demurrer and motion to strike on August 20, 2024; and (13) \$37.50 for 0.1 hours spent by Le on receiving and reviewing Defendant's Notice of Ruling regarding the demurrer and motion to strike hearing on August 27, 2024. (Opp., pp. 4:11-5:15; Mizrahi Decl., Exh. B.)

The Court clarifies that the

total amount of these invoices is \$5,527.50, as opposed to \$5,430.00. Furthermore, the Court observes that the invoice dated March 6, 2024, is associated with a case management conference and a hearing regarding the demurrer and motion to strike concerning Plaintiff's fraud claims. Consequently, the Court allocates 0.3 hours for the case management conference and 1.0 hours for the hearing on the demurrer and motion to strike. These adjustments result in a contested amount of \$5,415.00.

In contending that apportionment is unnecessary, Plaintiff references *Santana v. FCA US, LLC* (2020) 56 Cal.Rptr.3d 334. (Reply, pp. 9:13-23, 10:6-11.) Plaintiff asserts that the Court need not apportion fees between the claims arising under the Song-Beverly Act and those based on fraud, since "the fraud and Song-Beverly claims share the same essential facts, [rendering] apportionment [] neither required nor practicable." (Reply, p. 10:12-13.)

Although the Court concurs that, in numerous instances, it may be impractical or impossible to apportion fees between claims that share significant commonalities, this particular case does not exemplify such a scenario. The fees under consideration pertain specifically to the meet-and-confer process, demurrers, motions to strike, and notices of rulings that only directly involved Plaintiff's fraud claims. Defendant has submitted a list of apportioned fees for the Court's consideration. As a result, the Court declines to award \$5,415.00 in fees related to Plaintiff's fraud claims.

Pre-Client Engagement & Representation Work

Defendant asserts that the Court should not award the sum of \$920.00 for 1.6 hours of work dedicated to telephonic conferences with Plaintiff, reviewing documents in preparation for representation, and for receiving and reviewing the representation agreement. (Opp., p. 6:24-27.) Defendant argues that "initial consultation and due diligence prior to engagement are business expenses routinely treated as part of overhead[.]" and insists that a formal client relationship was not established until June 29, 2023. (Opp., pp. 6:27-7:4.)

The work undertaken was reasonably incurred by Plaintiff in connection with the commencement and prosecution of this action. Moreover, Defendant fails to provide any case law that supports the assertion that Plaintiff cannot recover attorney's fees for pre-litigation activities or that such expenses are not recoverable.

Consequently, the request to reduce attorneys' fees on these grounds is DENIED.

Duplicative, Block-Billed Case Analysis Work & Case Review/Updates to Client

Defendant contends that the Court should reduce the requested sum of \$2,472.50 to \$1,311.25 for 4.3 hours of work performed on specific dates, notably August 23, 2023, October 25 and 26, 2023, November 10 and 11, 2023, December 9, 2024, January 7, 2025, and February 20, 2026. (Opp., p. 7:5-15.) This request is based on the assertion that certain billing entries are block-billed, excessive, duplicative, or administrative in nature. (Opp., p. 7:15-19.)

Upon review, the Court finds that the tasks in question are neither excessive nor duplicative, and they do not qualify as bill-blocked entries. Moreover, Defendant fails to provide a sufficient explanation regarding how these entries are deemed bill-blocked, excessive, or duplicative. Additionally, while Defendant argues that some tasks are administrative, they have failed to cite relevant case law that establishes that such tasks are non-compensable, nor have they clarified which specific tasks they classify as administrative.

Consequently, the request to reduce attorneys' fees on these grounds is DENIED.

Preparing Templated Discovery Requests

Defendant contends that the Court should reduce the requested sum of \$690.00 to \$287.50 for the 1.2 hours spent by Mizrahi on preparing Plaintiff's requests for form interrogatories, special interrogatories, requests for admissions, and requests for production of documents on January 29, 2024. (Opp.,

p. 7:20-21.) Defendant argues that this time is excessive, given that Plaintiff utilized templates. (Opp., p. 7:22-27.)

Although Plaintiff acknowledges the use of templates, the Court understands that Plaintiff's counsel must still devote time to tailoring the four discovery requests to the specifics of the case. (Reply, p. 5:14-17.) Thus, the Court finds that the 1.2 hours claimed are reasonable and declines to reduce the requested attorney's fees on this ground.

Review of Defendant's Discovery Responses & Preparation of Templated Meet and Confer Correspondence

Defendant contends that the Court should reduce the requested sum of \$1,200.00 to \$375.00 for the 3.2 hours spent by Le on reviewing Defendant's discovery responses and documents, preparing meet-and-confer letters related to these responses, and analyzing Defendant's standard response letters on February 29, March 1 and 19, and April 5, 11, and 23, 2024. (Opp., p. 8:1-5.) Defendant argues that Plaintiff utilized templates and that Defendant's responses do not vary significantly from case to case. (Opp., p. 8:5-10.)

Although Defendant employed similar responses and letters, the Court recognizes that Plaintiff's counsel must still allocate time to review these responses and draft meet-and-confer letters that specifically address the current discovery responses under consideration. Thus, the Court finds that the 3.2 hours claimed are reasonable. The request to reduce the attorney's fees on this ground is DENIED.

Templated Discovery Responses

Defendant contends that the Court should reduce the requested sum of \$1,500.00 to \$262.50 for the 4.0 hours spent by Le on drafting Plaintiff's responses to Defendant's requests for form interrogatories, special interrogatories, requests for admissions, and requests for production of documents on March 26, 2024. (Opp., p. 8:11-12.) Defendant argues that Plaintiff utilized templates and that the responses were not novel

to this case. (Opp., p. 8:13-17.)

Although Plaintiff provided similar responses, the Court recognizes that Plaintiff's counsel must still dedicate time to ensure that these responses specifically address the current discovery requests. Thus, the Court finds that the 4.0 hours claimed are reasonable. The request to reduce attorney's fees on this ground is DENIED.

Motions to Compel Further Discovery Responses

Defendant contends that the Court should reduce the requested sum of \$5,850.00 to \$1,875.00 for the 14.6 hours spent by Le on tasks related to Plaintiff's motions to compel further responses to Plaintiff's special interrogatories and requests for production of documents. (Opp., p. 8:18-21.) The defendant argues that the time claimed is excessive, as Plaintiff utilized templates and dedicated 2.3 hours to drafting an amended motion to compel further responses to a request for production of documents, which was ultimately denied. (Opp., pp. 8:21-9:3.)

However, the Plaintiff must spend time revising motions to ensure they are applicable to this specific case. Moreover, the Court notes that although the amended motion was denied, the "dispute was [ultimately] resolved through further meet-and-confer and voluntary supplemental production[.]" a development that likely occurred as a direct result of Plaintiff's motion. (Reply, p. 6:26-28.) Thus, the Court finds that the 14.6 hours claimed are reasonable. The request to reduce attorney's fees on these grounds is DENIED.

Motion to Compel Person Most Knowledgeable ("PMK") Deposition

The defendant argues that the Court should decline to award \$1,912.50 in attorneys' fees associated with the motion to compel the deposition of Defendant's PMK, because the Court ultimately denied the motion due to Plaintiff's failure to engage in the meet and confer process in accordance with the applicable statutes. (Opp., p. 9:4-11.)

While it is accurate that the Court

denied the motion on the basis of Plaintiff's failure to adhere to meet and confer requirements, this procedural denial does not imply that "the underlying dispute lacked merit[.]" as Plaintiff aptly points out. (Reply, p. 7:12.) The Court acknowledges that, in general, testimony from a PMK concerning a manufacturer's knowledge of a defect is standard and pertinent to civil penalty exposure. (Reply, p. 7:14-16.) Consequently, the Court concludes that the motion was reasonably incurred in connection with the commencement and prosecution of this action. Thus, the request to reduce the attorney's fees on this ground is DENIED.

Templated Motions in Limine

Defendant contends that the Court should reduce the requested sum of \$1,012.50 to \$187.50 for the 2.7 hours spent by Le on drafting nine motions in limine. (Opp., p. 9:12-19.) Defendant argues that the claimed time is excessive, as Plaintiff utilized templates, and it is questionable that Plaintiff dedicated precisely 0.3 hours to each motion. (Opp., pp. 8:21-9:3.)

First, the Court finds that 0.3 hours, equivalent to 20 minutes, constitutes a reasonable amount of time for each motion to ensure that they accurately represent the specifics of this case. Moreover, although it may appear unusual for each motion to take exactly 20 minutes, the Court deems this not improbable, given the considerable similarity among the templated motions, which may allow for efficient time management. Thus, the Court finds that the 2.7 hours claimed are reasonable. The request to reduce the attorney's fees on these grounds is DENIED.

OSC Hearing re: Dismissal

Defendant argues that the Court should decline to award \$487.50 in attorneys' fees related to the Order to Show Cause re: Dismissal on May 18, 2026, stating that "[t]he OSC hearing was only necessary because Counsel had yet to file a fee motion." (Opp., p. 9:23-24.)

The hearing was necessitated by Plaintiff's filing of a notice of settlement for entire case and would have proceeded regardless of whether Plaintiff filed the noticed motion. Thus, the Court finds that the hours claimed are reasonable. The request to reduce the attorneys' fees on this ground is DENIED.

Fee Motion

Defendant contends that the Court should reduce the requested sum of \$3,622.50 to \$1,725.00 for the 6.3 hours spent by Mizrahi on this motion. (Opp., pp. 9:27-10:11.) This amount includes the following entries: (1) \$402.50 for 0.7 hours spent by Mizrahi on auditing Plaintiff's timesheets, calculating costs, and attempting to resolve this motion informally; (2) \$1,207.50 for 2.1 hours spent by Mizrahi on drafting this motion; and (3) \$2,012.50 for 3.5 projected hours allocated to reviewing the opposition brief, composing a reply brief, and attending the hearing. (Opp., pp. 9:27-10:3; Mizrahi Decl., Exh. B.) Defendant contends that the claimed time is excessive, asserting that Plaintiff utilized templates and arguing that "auditing billing records is a ministerial and business task not properly charged to one's client and should not be imputed to" Defendant. (Opp., p. 9:8-9.)

The Court first observes that Defendant has not provided any statute or case law to substantiate the claim that auditing constitutes a non-compensable task. Additionally, the Court finds the requested time to be reasonable. While the Court acknowledges that the motion is based on a template, it deems 2.1 hours to be a reasonable duration for editing the template and providing the requisite supporting documentation. Likewise, the Court considers 3.5 hours to be appropriate for reviewing Defendant's opposition, drafting a reply, and attending the hearing, given the numerous arguments presented by Defendant in its opposition, along with the Court's expectation that the hearing should last approximately one hour.

Consequently, the request to reduce the attorneys' fees on these grounds is DENIED.

Clerical/Administrative/General Case Management Tasks

The defendant argues that the Court should decline to award \$1,867.00 in attorneys' fees associated with various clerical and administrative tasks, arguing that such work constitutes overhead and should not be charged to opposing counsel. (Opp., p. 10:12-24.)

First, Defendant cites Morris

v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 37 to support the assertion that time spent on

these tasks is non-compensable due to its classification as overhead. (Opp., p. 10:19-24.) However, the Court observes that the cited

section makes no reference to the exclusion of overhead or clerical,

administrative, and general case management tasks from a request for attorneys'

fees.

Second, Defendant provides insufficient

detail regarding the specific clerical, administrative, and general case

management tasks in question. The

absence of dates in the entries prevents the Court from reviewing them to

determine their nature.

Thus, the Court finds that the

hours claimed are reasonable. The request to reduce the attorneys' fees on this

ground is DENIED.

Costs and Expenses

The plaintiff seeks

reimbursement in the amount of \$1,499.05 for incurred costs and expenses. (Motion, pp. 7:17-19; 9:1-15.) In support of this request, Plaintiff has attached

a memorandum of costs. (Mizrahi Decl., ¶

4, Exh. C.) However, as Defendant points

out, Plaintiff has not provided any documentation, specifically invoices or

receipts, to substantiate the claimed costs.

(Opp., p. 11:4-6.) In the absence

of such evidence, the Court is unable to ascertain whether these costs were

reasonably incurred, or indeed, incurred at all. Given that Defendant limits its objections to \$402.05 of the requested costs,

the Court will not approve any costs without the

requisite supporting documentation.

(Opp., pp. 11:3-12:10.)

As such, Plaintiff's motion for

Attorney's Fees is GRANTED in the reduced amount of \$30,169.50, calculated as

follows: \$35,986.55 - \$5,415.00 - \$402.05.

ORDERS

1) Plaintiff

Kevin Symons' Motion for Attorneys' Fees, Costs, and Expenses Pursuant to Civil Code § 1794(d) is GRANTED in the reduced amount of \$30,169.50.

2) Plaintiff

is ordered to give notice of this Court's ruling.

IT

IS SO ORDERED.

DATED: July 27, 2026

Tamara

Hall

Judge

of the Superior Court